

**CHAPTER ccx.**

An Act for empowering the Corporation of Leeds to
construct certain temporary railways and works to
facilitate the construction of their authorised water-
works in the valley of the Burn and to authorise the
placing of electric lines in certain highways and for
other purposes. A.D. 1904.
[15th August 1904.]

WHEREAS by the Leeds Corporation Water Act 1901 the
lord mayor aldermen and citizens of the city of Leeds (in
this Act called "the Corporation") were empowered to construct
(inter alia) certain reservoirs and waterworks in the valley of the
Burn (herein-after referred to as "the authorised waterworks")
and in order to facilitate the construction of the authorised water-
works and in connexion therewith it is expedient to empower the
Corporation to construct the short lines of railway in this Act
mentioned and also to erect place and use electric lines for the
purpose of telephonic communication between the city of Leeds
and the authorised waterworks:

And whereas a Bill has been introduced into Parliament
intituled "An Act to empower the corporation of Harrogate to
" construct a temporary tramroad telephonic communication and
" other works in connexion with their waterworks and for other
" purposes" and it is expedient in the event of the said Bill
passing into law and becoming an Act (in this Act referred to
as "the Harrogate Tramroad Act") that the Corporation should
be empowered to form a junction with the tramroad authorised
by that Act and in a certain event to purchase the interest of
the Harrogate Corporation in such tramroad as by this Act
provided:

A.D. 1904.
—

And whereas it is expedient to make such other provisions as are in this Act contained:

And whereas the purposes of this Act cannot be effected without the authority of Parliament:

And whereas estimates have been prepared by the Corporation for the purchase of lands for and the execution of the various works and purposes by this Act authorised and such estimates amount to forty thousand two hundred and fifty pounds:

And whereas the several works included in such estimates are permanent works within the meaning of the Public Health Act 1875 and it is expedient that the cost thereof should be spread over a term of years and that the Corporation should be entitled to apply any moneys borrowed by them under the Water Act for the purpose of defraying such cost:

And whereas an absolute majority of the whole number of the council at a meeting held on the first day of January one thousand nine hundred and four after ten clear days notice by public advertisement of such meeting and of the purpose thereof in the Yorkshire Post a local newspaper published and circulating in the city such notice being in addition to the ordinary notices required for summoning such meeting resolved that the expense in relation to promoting the Bill for this Act should be charged on the city fund and city rate:

And whereas such resolution was published twice in the said Yorkshire Post and has received the approval of the Local Government Board:

And whereas the propriety of the promotion of the Bill for this Act was confirmed by an absolute majority of the whole number of the council at a further special meeting held in pursuance of a similar notice on the second day of March one thousand nine hundred and four being not less than fourteen days after the deposit of the Bill in Parliament:

And whereas in relation to the promotion of the Bill for this Act the requirements contained in the First Schedule of the Borough Funds Act 1903 have been observed:

And whereas plans and sections showing the lines and levels of the railways authorised by this Act and also books of reference containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of the lands required or which

may be taken and the roads and highways to be used for the purposes or under the powers of this Act were duly deposited with the respective clerks of the peace for the North and West Ridings of the county of York and are herein-after respectively referred to as the deposited plans sections and books of reference : A.D. 1904.

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

1. This Act may be cited as the Leeds Corporation (Water-works) Railway Act 1904. Short title.

2. The following Acts and parts of Acts so far as the same are applicable for the purposes and are not inconsistent with the provisions of this Act are (except where expressly varied by this Act) incorporated with and form part of this Act (namely) The Lands Clauses Acts and the Railways Clauses Consolidation Act 1845 (except sections 46 to 48 59 to 62 and 86 to 107) and sections 4 and 5 and 9 to 12 of the Railways Clauses Act 1863. Incorporation of Acts.

3. In this Act unless the subject or context otherwise require— Interpretation.

“ The Corporation ” means the lord mayor aldermen and citizens of the city of Leeds ;

“ The city ” means the city of Leeds ;

“ The council ” means the council of the city ;

“ The town clerk ” means the town clerk of the city ;

“ The Water Act ” means the Leeds Corporation Water Act 1901 ;

“ The railways ” means the railways by this Act authorised ;

“ The Harrogate Corporation ” means the mayor aldermen and burgesses of the borough of Harrogate :

And in this Act unless the subject or context otherwise requires expressions to which meanings are assigned by the Acts wholly or partially incorporated herewith have in this Act the same respective meanings Provided that for the purposes of and in this Act the expressions “ undertakers ” “ the promoters of the undertaking ” and “ the company ” mean the Corporation.

A.D. 1904.

Power to
make rail-
ways.

4. Subject to the provisions of this Act the Corporation may make work use and maintain the railways herein-after described in the lines and according to the levels shown on the deposited plans and sections with all proper sidings junctions passing-places approaches bridges telegraphic and telephonic wires and apparatus works and conveniences connected therewith The railways herein-before referred to and authorised by this Act are—

Railway No. 1 (1 mile and 1·80 chains in length) in the parish of Healey-with-Sutton commencing by a junction with the tramroad authorised by the Harrogate Tramroad Act at or near the termination of that tramroad at a point to be agreed upon between the Corporation and the Harrogate Corporation or failing agreement determined by Henry Slade Childe or failing him an arbitrator to be appointed on the application of either party by the Board of Trade and terminating in the field numbered 459 on the $\frac{1}{2500}$ Ordnance map dated 1890 for the said parish :

Railway No. 2 (2 furlongs and 8·50 chains in length) situate in the parish of Healey-with-Sutton commencing in the field numbered 454 on the said Ordnance map by a junction with Railway No. 1 and terminating in the field numbered 175 on the said Ordnance map :

Railway No. 3 (1 mile and 7·40 chains in length) situate in the parish of Healey-with-Sutton commencing in the field numbered 452 on the said Ordnance map by a junction with Railway No. 1 and terminating in the field numbered 108 on the said Ordnance map.

Railways to
be con-
structed and
worked as
light rail-
ways.

5.—(1) The railways shall be constructed and worked as light railways and the provisions of sections 28 and 29 of the Regulation of Railways Act 1868 shall apply as if the railways had been authorised to be so constructed and worked by licence of the Board of Trade under that Act.

(2) The Highway (Railway Crossings) Act 1839 and the Railway Regulation Act 1842 shall not apply to the railways.

Gauge of
railways.

6. Railway No. 1 from its commencement to its junction with Railway No. 3 shall be constructed on a gauge of two feet and the remaining part of Railway No. 1 and the whole of Railways No. 2 and No. 3 may be constructed on such wider gauge as the Corporation may think fit not exceeding three feet.

7. The Corporation may in the construction of the railways carry the same with a single line only across and on the level of any public highway shown on the deposited plans subject to the following provisions (that is to say) :—

A.D. 1904.

As to cross-
ing roads on
level.

(A) Cattle guards or other suitable contrivances shall be constructed at each side of the road and so maintained as to prevent cattle or horses on the road from entering upon the railway :

(B) At each of two points one three hundred yards along the railway in one direction from the level crossing and the other three hundred yards along the railway in the other direction from the level crossing there shall be erected and maintained a white post standing five feet above ground and bearing upon it and so as to be plainly legible by the driver of an engine approaching the level crossing a statement indicating the near approach to the level crossing :

(C) At each of two points one fifty yards or thereabouts along the road in one direction from the point of crossing and the other fifty yards or thereabouts along the road in the other direction from the point of crossing there shall be erected and maintained by the Corporation a notice board cautioning the public to beware of the trains.

8. Notwithstanding anything contained in the Railways Clauses Consolidation Act 1845 and subject to the provisions of this Act the Corporation shall not be bound to fence the line of railway.

As to fenc-
ing of rail-
way.

9. Subject to the provisions and for the purposes of this Act the Corporation may enter on take and use all or any of the lands delineated on the deposited plans and described in the deposited books of reference.

Power to
acquire lands.

10. The powers of the Corporation for the compulsory purchase of lands under this Act shall not be exercised after the expiration of two years from the passing of this Act.

Period for
compulsory
purchase of
lands.

11.—(1) The Corporation may in lieu of acquiring any lands for the purpose of the railways acquire such easements and rights in such lands as they may require for the purpose of making

Power to
acquire ease-
ments only
for railways.

A.D. 1904

maintaining repairing and working the railways and may give notice to treat in respect of such easements and rights and may in such notice describe the nature thereof and the term of years for which the same are required and the several provisions of the Lands Clauses Acts (inclusive of those with regard to limited owners and to arbitration and the summoning of a jury) shall apply to such easements and rights as fully as if the same were lands within the meaning of those Acts.

(2) Provided that (except as to land forming part of a street) nothing in this section contained shall authorise the Corporation to acquire by compulsion any such easement in any case in which the owner in his particulars of claim shall require the Corporation to acquire the lands in respect of which they have given notice to treat for the acquisition of an easement only and every notice to treat for the acquisition of an easement shall be endorsed with notice of this provision.

Power to
purchase by
agreement
and appro-
priate addi-
tional lands.

12. The Corporation in addition to any other lands which they are by this Act authorised to acquire may by agreement purchase take on lease acquire and hold for the purposes of this Act any lands not exceeding in the whole five acres and they may appropriate for the purposes of this Act any lands acquired by them under the powers of the Water Act Provided that the Corporation shall not create or permit the creation or continuance of any nuisance on any such lands.

Protection of
gas and
water mains
of local
authorities.

13. The provisions of sections 18 to 23 of the Railways Clauses Consolidation Act 1845 shall for the purposes of this Act extend and apply to the water and gas mains pipes and apparatus of any local authority and shall be construed as if "local authority" were mentioned in those sections in addition to "company or society" Provided that any penalties recovered under section 23 shall be appropriated to that fund of the local authority to which their revenues in respect of water or gas (as the case may be) are appropriated.

Period for
completion
of works.

14. If the railways are not completed within three years from the passing of this Act then on the expiration of that period the powers by this Act granted to the Corporation for making and completing the railways or otherwise in relation thereto shall cease except as to so much thereof as is then completed.

15. Persons empowered by the Lands Clauses Acts to sell and convey or release lands may if they think fit subject to the provisions of those Acts and of this Act grant to the Corporation any easement right or privilege (not being an easement right or privilege of water in which persons other than the grantors have an interest) required for the purposes of this Act in over or affecting any such lands and the provisions of the said Acts with respect to lands and rentcharges so far as the same are applicable in this behalf shall extend and apply to such grants and to such easements rights and privileges as aforesaid respectively.

A.D. 1904.
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 Persons under disability may grant easements &c.

16. The Corporation and any road authority may enter into agreements with respect to the mode of constructing and the maintaining renewing repairing and using of such part or parts of the railways as shall cross any road situate within the district of such road authority and the repairing of the road where crossed by the railways.

Agreements between Corporation and road authorities.

17.—(1) The railways shall form part of the works authorised by the Water Act and shall only be used for or in connexion with the purposes thereof.

Railways to be used only for waterworks and to be removed after completion.

(2) The Corporation shall (subject to the provisions of this Act) within one year after the period allowed for the completion of the waterworks authorised by the Water Act take up and remove the rails and materials of the railways.

18. In determining the amount of the purchase money or compensation payable under the Lands Clauses Acts as incorporated with this Act for or in respect of any lands taken or any easement or right acquired over any lands for the purposes of the railways regard shall be had—

Special provision as to assessment of compensation.

(A) To the temporary nature of the works and of such easement or right and to the obligations of the Corporation under this Act and more particularly under the section of this Act whereof the marginal note is “Railways to be used only for waterworks and to be removed after completion”; and

(B) In the case of any owner of such lands who has been awarded compensation under the provisions of the Water Act in respect of any lands easements or rights acquired from him by the Corporation under that Act

A.D. 1904.
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to the fact of such compensation and to the disturbance severance and other matters of injury to the other lands of such owner incident to the carrying out of the works by the Water Act authorised and for or in connexion with which the said lands easements or rights were acquired.

Purchase of
tramroad.

19.—(1) In the event of the works authorised by the Harrogate Water Act 1901 being completed before the works authorised by the Water Act the Harrogate Corporation shall sell to the Corporation and the Corporation shall purchase the interest of the Harrogate Corporation in the tramroad authorised by the Harrogate Tramroad Act upon such terms and conditions as shall be agreed upon between the two Corporations or as failing agreement shall be determined by arbitration such interest being calculated on the structural value of the undertaking after giving credit for any sum paid by the Corporation towards the capital cost of the tramroad Upon payment of the purchase money so agreed or determined the tramroad and all works in connexion therewith together with the rights powers and privileges of the Harrogate Corporation in connexion therewith shall be transferred to and vest in the Corporation.

(2) As from the date of such transfer the Corporation shall perform the obligations imposed upon the Harrogate Corporation by the agreement scheduled to the Harrogate Tramroad Act and clause 8 of that agreement shall be read as if the Harrogate Corporation therein referred to were the Corporation and the period was the completion of the works authorised by the Water Act.

Power to
erect tele-
phone wires.

20. The Corporation may for the purpose of completing telephonic communication between the city of Leeds and the waterworks of the Corporation authorised by the Water Act during the period allowed by that Act for the construction of such waterworks place lay down maintain use remove alter and renew electric lines or wires with all necessary and proper posts works and apparatus over under along or across the roads and highways shown on the deposited plans and herein-after mentioned (that is to say):—

(1) In the townships of Burton-upon-Ure Masham Swinton with Warthermarske and Grewelthorpe from a point near the North Eastern Railway Company's station at Masham and thence in a westerly direction along the county main road through the village of Masham along

Badger Lane into the township of Grewelthorpe and thence along the highway from Grewelthorpe to Kirkby Malzeard to the boundary of the townships of Grewelthorpe and Kirkby Malzeard :

A.D. 1904.
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(2) In the parish and townships of Masham Fearby and Healey-with-Sutton from a point in the main road between Masham village and the railway station along the public highway from Masham to Fearby and thence along the public highway known as Keld Bank through the village of Healey to the junction of Keld Bank and Leighton Lane and thence along Leighton Lane and across land belonging to the Corporation to the offices of the Corporation near the site of the authorised Leighton Reservoir :

(3) In the parish of Healey-with-Sutton from a point in Leighton Lane near Leighton Bridge along the public highway past the farmhouse known as Crab House to the offices of the Corporation at Breary Bank and thence across land belonging to the Corporation to the site of the embankment of the intended Colsterdale Reservoir.

21. The Corporation will afford to the Harrogate Corporation reasonable facilities for the user by them of the telephone posts erected by the Corporation under the powers of this Act for the purpose of placing thereon telephone and other wires upon such terms as may be agreed between the Corporation and the Harrogate Corporation or failing agreement determined by arbitration.

Facilities to
be given to
Harrogate
Corporation.

22.—(1) The provisions of the Gasworks Clauses Act 1847 with respect to the breaking up of streets and with respect to injury to pipes and other works which are set forth in the appendix to the schedule to the Electric Lighting (Clauses) Act 1899 and the provisions of section 14 of the said schedule shall with the necessary modifications apply to the electric lines or wires and posts authorised by this Act and the said provisions of the Gasworks Clauses Act 1847 shall be construed as if “pipe” meant “electric line or wire.”

As to placing
of electric
lines over or
under roads.

(2) All electric lines or wires authorised by this Act to be placed along or across any road or highway shall unless required to be laid underground under the provisions of section 14 of the schedule to the Electric Lighting (Clauses) Act 1899 as applied by this Act be placed over the road or highway.

A.D. 1904.

(3) Nothing in this Act shall authorise the Corporation to work or use any telegraphic or telephonic communications or electric lines or wires in contravention of the exclusive privilege conferred on the Postmaster-General by the Telegraph Act 1869 or in consideration of any money payment or any valuable consideration or for any purpose other than the purpose of their waterworks undertaking or to construct any such communications or electric lines or wires which shall interfere in any way with any telegraphic line in the possession or under the control of the Postmaster-General and the Corporation shall within forty-eight hours of the service on them of a notice in writing by the Postmaster-General in that behalf remove or alter to the satisfaction of the Postmaster-General any such communications or electric lines or wires as aforesaid which in the opinion of the Postmaster-General interfere or will interfere with the efficient or convenient maintaining working or user of any telegraphic line which the Postmaster-General has constructed or desires to construct and in default of such removal or alteration as aforesaid the Postmaster-General may remove or alter any such communications or electric lines or wires as aforesaid at the expense of the Corporation.

Provision for
removal of
trees.

23. If the Corporation cannot place the electric lines wires or posts required for telephonic communication in or over any road or highway without cutting down any tree or lopping the branches thereof or if any tree or any branch thereof shall be in danger of falling on the electric lines or wires it shall be lawful for a court of summary jurisdiction on the complaint of the Corporation to order such tree to be removed or otherwise dealt with and the court in making such order may award compensation to be paid by the Corporation to the owner of the tree so ordered to be removed or otherwise dealt with as such court shall think proper.

Compensa-
tion for
damage.

24. In the exercise of the powers in relation to the placing or laying down of electric lines posts or wires given them under this Act the Corporation shall cause as little detriment and inconvenience and do as little damage as may be and shall make full compensation to all bodies and persons interested for all damage sustained by them by reason or in consequence of the exercise of such powers and the amount and application of such compensation in case of difference shall be determined by arbitration.

For protec-
tion of Ripon

25. For the protection of the rural district council of the rural district of Ripon in the West Riding of the county of York

(in this section referred to as "the council") the following provisions shall unless otherwise agreed in writing between the council and the Corporation have effect (that is to say):—

A.D. 1904.
 Rural District Council.

- (1) Notwithstanding anything contained in this Act the Corporation shall not without the consent of the council place any electric line or wire underground within the district of the council and shall not except for the purpose of erecting posts for carrying the electric lines or wires placed for affording the telephonic communication by this Act authorised open or break up the surface of any street or road within the said district:
- (2) All posts erected by the Corporation under the powers of this Act within the said district shall be placed in such positions in the road as the council may direct and shall be stayed or otherwise supported in such manner as the council may reasonably require:
- (3) All electric lines or wires placed by the Corporation within the said district shall be placed at such height above the ground as the council may prescribe:
- (4) If at any time the council shall be of opinion that any of the posts or wires erected or placed by the Corporation within the said district are in such a condition as to cause risk of injury or damage to persons or property the Corporation shall make all such renewals or alterations of or repairs to such posts or wires as the council may reasonably require:
- (5) If any question shall arise as to the reasonableness of any requirement of the council under this section such question shall be determined by an arbitrator to be agreed upon or failing agreement to be appointed on the application of either party by the Board of Trade.

26. For the protection of the county council of the North Riding of the county of York (in this section referred to as "the council") the following provisions shall unless otherwise agreed in writing between the council and the Corporation have effect (that is to say):—

For protection of North Riding County Council.

- (1) The Corporation shall not allow any engine or trucks using the railways by this Act authorised to cross any county main road between the hours of one hour after sunset and one hour before sunrise:

A.D. 1904.

- (2) Before commencing any work involving any alteration of or interference with the structure of any bridge vested in or under the control of the council or the approaches to any such bridge the Corporation shall submit to the council for their approval plans and sections showing the manner in which such works are proposed to be executed and no such works shall be executed otherwise than in accordance with plans and sections approved by the council :
- (3) Before erecting upon any such bridge or approaches as aforesaid any such posts or apparatus as are referred to in the section of this Act of which the marginal note is " Power to erect telephone wires " the Corporation shall submit to the council for their approval plans showing the proposed position of all such posts and apparatus and no such posts or apparatus shall be erected otherwise than in accordance with plans approved by the council :
- (4) If within fourteen days after receipt of any such plans and sections as aforesaid the council shall not intimate to the Corporation their disapproval thereof the council shall be deemed to have approved the plans and sections so submitted and the Corporation shall be at liberty to execute the said works or to erect the said posts and apparatus (as the case may be) in accordance with such plans and sections but not otherwise :
- (5) When any of the works by this Act authorised involves any interference with the surface of any main road or of the roadway on any county bridge in the said North Riding the Corporation shall as soon as may be and to the satisfaction of the council restore the same to as good a condition as the same was in at the time when the same was first interfered with by the Corporation or as near thereto as may be.

For protection of
Masham Urban District
Council.

27. For the protection of the urban district council of the urban district of Masham (in this section referred to as " the council ") the following provisions shall unless otherwise agreed in writing between the council and the Corporation have effect (that is to say) :—

- (1) The Corporation shall lay with such materials and in such manner as the council may reasonably require

and shall at all times until the railway shall be removed maintain and repair to the reasonable satisfaction of the council so much of all roads within the jurisdiction and under the control or management of the council (in this section referred to as "district roads") upon or across which the railway is laid as lies between the rails of the railway and as extends for a distance of eighteen inches beyond such rails on each side : A.D. 1904.

- (2) The Corporation shall not lay the railway upon or across any district roads or execute any work affecting any such roads otherwise than in accordance with plans and sections previously submitted to and reasonably approved by the council and all works constructed by the Corporation upon across or affecting district roads shall be executed under the supervision (at the expense of the Corporation) and to the reasonable satisfaction of the council :
- (3) In constructing maintaining and using the railways and working the traffic thereon the Corporation shall not unduly obstruct or interfere with the passage of vehicles or persons along the roads crossed on the level by the railways :
- (4) Notwithstanding anything contained in this Act the Corporation shall not without the consent of the council place any electric line or wire in any district roads underground within the district of the council and shall not except for the purpose of erecting posts for carrying the electric lines or wires placed for affording the telephonic communication by this Act authorised open or break up the surface of any district roads :
- (5) All posts erected by the Corporation under the powers of this Act in any district roads shall be placed in such positions in the road as the council may reasonably direct and shall be stayed or otherwise supported in such manner as the council may reasonably require :
- (6) All electric lines or wires placed by the Corporation in any district roads shall be placed at such height above the ground as the council may reasonably prescribe :

A.D. 1904.

(7) If at any time the council shall be of opinion that any of the posts or wires erected or placed by the Corporation within the said district are in such condition as to cause risk of injury or damage to persons or property the Corporation shall make all such renewals or alterations of or repairs to such posts or wires as the council may reasonably require:

(8) If any question shall arise as to the reasonableness of any requirement of the council under this section such question shall be determined by an arbitrator to be agreed upon or failing agreement to be appointed on the application of either party by the Board of Trade.

For protec-
tion of Hon-
ourable
Samuel Cun-
liffe Lister.

28. The following provisions shall unless otherwise agreed in writing have effect for the protection of the Honourable Samuel Cunliffe Lister of Swinton Masham in the county of York his heirs and successors in estate and assigns for the time being entitled in possession whether for life or any greater estate to the estate known as "the Swinton Estate" herein-after called "the owner":—

(1) Any lands of the owner required by the Corporation for the purposes of the easements by this Act authorised to be acquired shall be taken by them subject to all existing tenancies and tenant right claims and every apportionment of rent shall be subject to the owner's consent and where the railways shall interfere with any existing watering places for cattle or with any drainage the Corporation will make alternative provision therefor to the reasonable satisfaction of the owner or his agent:

(2) The Corporation shall properly drain the railways constructed or used by them and shall maintain all ditches and construct and maintain all necessary drains and culverts under such railways so as to prevent the accumulation of water:

(3) The Corporation shall at their own expense at or before the expiration of the period allowed for the completion of the waterworks authorised by the Water Act (herein-after referred to as "the said period") and

unless the owner shall exercise the option of purchase herein-after contained remove all and every the said railways and all other structures or structural works (including all telephone or other wires connected therewith) and shall replace the turf and leave the surface of the land on which the same shall have been laid or constructed in a like condition as near as possible as it is now and to the reasonable satisfaction of the owner or his agent and if the Corporation shall not remove any such railways or such other works within the said period the same shall without making any payment to the Corporation become the absolute property of the owner who may either retain or remove the same and if he removes the same the cost of such removal and of the restoration of the land shall be borne by the Corporation Provided always that the owner shall have the option on giving six months notice to the Corporation before the expiration of the said period of purchasing the said railways and works or any part thereof together with any fixed or loose plant on the works at a price which failing agreement shall be settled by arbitration as herein-after provided Provided also that notwithstanding anything contained in the Harrogate Tramroad Act the owner shall not exercise the option of purchase conferred by that Act in respect of the tramroad thereby authorised or by this subsection in respect of the railways until the expiration of the said period :

A.D. 1904.
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- (4) The Corporation shall from time to time and at all times until the land affected thereby shall be restored and rendered again arable and fit for pasturing or agricultural purposes make compensation to the tenants or occupiers thereof for all injury or damage that shall be done to the surface of such lands or the fences herbage crops or other property thereon by reason of the laying down user and maintenance of the said railways and works or by reason of the exercise of any of the powers or privileges by this Act authorised :
- (5) The Corporation shall as far as possible prevent any of their workmen servants or agents from at any time trespassing on any of the lands or grounds of the

A.D. 1904.

owner or doing damage thereon or disturbing any game thereon and particularly shall prevent any person or persons from using the line of Railway No. 1 as a footway or road :

- (6) Where any of the railways shall cross a line of fence the Corporation shall so fence the same by cattle guards or other suitable contrivances as to prevent stock depasturing on one field from straying to an adjoining or other field and shall make full satisfaction to the owner or the tenants or occupiers of the said land or other persons for any damage which may be sustained by them by reason of any horses cattle or sheep straying or trespassing and shall indemnify the owner against all losses costs charges and expenses which he may incur or be put to by reason of anything arising out of or in any manner consequent upon the powers and privileges by this Act authorised :
- (7) The Corporation shall at their own expense and at all times during the said period keep the railways and works hereby authorised to be laid down and constructed in good repair until the notice referred to in subsection (3) shall be given :
- (8) The exclusive right of sporting over any lands in respect of which the easements and rights are by this Act granted with full rights of access and of passage along or across the same shall belong and be reserved to the owner and others whom he may authorise :
- (9) No barbed wire shall be used in the construction of fences or other works constructed by the Corporation :
- (10) No officer servant or agent of the Corporation shall at any time cross or come upon the estate of the owner without the written authority of the Corporation and such officer servant or agent shall at all times when upon such estate if required produce and show such authority to the owner his servants or agents :
- (11) All reasonable means for protecting game from damage or destruction shall be applied in the case of telegraph or telephone wires laid by the Corporation through the estate of the owner :

- (12) Any subsidiary works necessary to be constructed by the Corporation in connexion with the railways shall be subject to the reasonable approval of the owner or his engineer : A.D. 1904.
- (13) The powers conferred by the section of this Act whereof the marginal note is "Power to acquire lands" shall not apply to any lands of the owner :
- (14) The powers conferred by the section of this Act whereof the marginal note is "Provision for removal of trees" shall not be exercised without the consent of the owner and except in case of absolute necessity no timber trees shall be interfered with and where such interference is necessary and any trees are removed or damaged the Corporation shall compensate the owner therefor :
- (15) As full compensation for the grant of easements for making maintaining repairing and working the railways in and through the lands forming part of the Swinton Estate and for the wayleave or right to run over and use the tramroad authorised by the Harrogate Tramroad Act (so far as the owner of that estate is interested) and for the use during the said period of the lands herein-after mentioned including in respect of the matters aforesaid compensation for severance and for all damage arising from the making maintaining repairing and working the railways (except as herein-after mentioned) the Corporation shall on taking possession or not later than three months after the passing of this Act pay to the owner the sum of nine thousand pounds :
- (16) The lands herein-before referred to shall consist of two plots of land in the Swinton Estate not exceeding in the whole five acres to be selected by Thomas Hewson or other the city engineer of Leeds and agreed to by Henry Slade Childe or such other engineer as may be appointed by the owner or failing agreement by a surveyor to be appointed by the President of the Surveyors Institution :
- (17) The railways shall be constructed as single lines except that the Corporation shall be at liberty to construct three passing-places on Railway No. 1 and three passing-places on Railway No. 3 such passing-places

A.D. 1904.

to be in each case of a length not exceeding fifty yards and so that the width of land to be appropriated shall not exceed (a) where the railway is laid as a two-foot gauge in the case of a single line fifteen feet and in the case of a double line twenty feet and (b) where the railway is laid as a three-foot gauge in the case of a single line twenty feet and in the case of a double line thirty feet:

(18) The provisions of this section shall be in addition to and not in derogation from any other provisions of this Act or any Act of Parliament incorporated therewith which may enure for the protection or benefit of the owner:

(19) Any difference or dispute between the owner and the Corporation relating to any matter arising under the provisions of this section shall be determined by arbitration in the manner provided by the Arbitration Act 1889.

Power to apply moneys borrowed under Water Act.

29. The Corporation may apply any moneys borrowed by them under the Water Act for the purposes (a) mentioned in section 41 (Power to borrow) of that Act to the construction of works and the purchase of lands or easements under the powers of this Act and to the purchase of the interest of the Harrogate Corporation in the tramroad authorised by the Harrogate Tramroad Act and to any capital expenditure payable by the Corporation under that Act as if the same respectively had been the purchase of lands for and the construction of works authorised by the Water Act.

Power to borrow for costs of Act.

30.—(1) The Corporation may independently of any other borrowing power borrow at interest for paying the costs and expenses of this Act as herein-after provided the sum necessary for that purpose.

(2) The Corporation shall repay all moneys borrowed by them under this section within five years from the passing of this Act.

(3) The Corporation shall raise all moneys which they are by this section authorised to borrow in accordance with the provisions of the Leeds Corporation (General Powers) Act 1901 and for that purpose the moneys authorised to be borrowed under this section shall be deemed to be principal moneys within the meaning of that Act and in order to provide for the repayment of the moneys

[4 EDW. 7.]

*Leeds Corporation (Waterworks)
Railway Act, 1904.*

[Ch. ccx.]

so authorised to be borrowed and the payment of interest thereon the revenue of the waterworks undertaking of the Corporation shall be specifically liable therefor and such moneys shall be primarily chargeable accordingly and this Act shall be included within the expression "Corporation Acts and Orders" as defined by the Leeds Corporation (General Powers) Act 1901. A.D. 1904.

31. The provisions of the Municipal Corporations Acts relating to the keeping and auditing of accounts and the accounts kept of sums of money received and paid under those Acts shall extend to the keeping and auditing of accounts and to the accounts kept of sums of money received and paid under this Act. Audit of accounts.

32. All the costs charges and expenses preliminary to and of and incidental to the preparing applying for obtaining and passing of this Act as taxed by the taxing officer of the House of Lords or of the House of Commons shall be paid by the Corporation as expenses of the water undertaking of the Corporation and ultimately out of moneys borrowed under this Act. Costs of Act.

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